

STATE OF NEW YORK SUPREME COURT
COUNTY OF NEW YORK

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THE CITY OF NEW YORK,

Plaintiff,

Index No.: 450551/2025

-against-

**AFFIRMATION OF IAN
REISNER**

THE LAND AND BUILDING KNOWN AS 512 WEST 42nd STREET, also known as 510 WEST 42nd STREET, TAX BLOCK #1070, TAX LOT #20, COUNTY OF NEW YORK, CITY and STATE of NEW YORK; WEST 42nd STREET DEVELOPERS, LLC; BABY'S WEST 42 LLC; "JOHN DOE" and "JANE DOE," fictitiously named parties, true names unknown, the intended being the owners, lessees, operators or occupants of the commercial premises operating within the basement, ground floor and second floor of the building at 512 West 42nd Street, New York, New York; and any person claiming any right, title or interest in the real property which is the subject of this action,

Defendants.

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I, Ian Reisner, hereby affirm under penalty of perjury, pursuant to CPLR 2106, as follows:

1. I am the individual referred to as "John Doe" in the caption of this matter. I am also the principal of Urban Resort LLC, which holds the master lease for the premises located at 512 West 42nd Street, New York, New York (the "Premises"). I make this affirmation based on personal knowledge, my role in overseeing operations at the Premises, and my direct communications with relevant parties and agencies.

2. I submit this affirmation in strong opposition to any language in the City's proposed order that could be construed as authorizing Maureen Lupo to host, attend, coordinate, or profit from any events at the Premises, including but not limited to temporary or conditional access.

3. Firstly, Ms. Lupo has no executed lease. As confirmed in open court on February 5, 2025, she admitted that she never signed a lease, never paid rent, and never posted any deposit. She repeatedly expressed a desire to sign a lease, referencing unsigned draft term sheets.

4. New York General Obligations Law § 5-703 requires a signed writing for leases over one year. Here, no such writing exists here. Her claim of tenancy is fabricated and was never supported by performance.

5. In or around November 2024, Ms. Lupo regained access to the Premises by presenting an unsigned term sheet to NYPD officers, falsely asserting it was a lease.

6. This conduct—described more specifically in the Affirmation of Robert J. Hantman, my counsel in the related case pending in this same County (*Reisner v. Lupo*, 650204/2025, at Doc. No. 105)—was misleading and caused law enforcement to mistakenly allow her back in.

7. This deception laid the foundation for a series of unauthorized events, police responses, and ultimately the present nuisance abatement action.

8. During her unauthorized occupation, Ms. Lupo held events without insurance, security, or valid liquor licensing. Her conduct led directly to a shooting incident that left one person with a gunshot wound to the head.

9. This is also detailed in the City's Amended Complaint and in the Affirmation of NYPD Sgt. Jason Castillo (see NYSCEF Doc. No. 15).

10. She also ordered and received approximately \$17,000 in liquor under her name despite lacking SLA authorization, which in effect exposed the Premises to SLA penalties, fire code violations, tort liability, and reputational harm.

11. Urban Resort LLC has invested significant capital and energy to restore and operate the Premises lawfully and in coordination with the City. Ms. Lupo's continued claims and interference have jeopardized commercial partnerships, driven away potential insurers and operators, and caused reputational harm.

12. Permitting her reentry would undermine ongoing efforts to bring the Premises into full compliance and risk inviting further violations and enforcement action.

13. Ms. Lupo's actions, including document forgery, unlicensed events, unpaid vendor invoices, and retaliatory communications, have been chronicled in the Affirmations filed by Mr. Hantman on February 4 and June 26, 2025, in the related proceedings (Doc. Nos. 61 and 105 in *Reisner v. Lupo*, 650204/2025).

14. She has made false and defamatory statements to business partners and falsely claimed an ownership interest she never had, which only further misled potential investors and violated basic fiduciary norms.

15. She does not qualify for equitable relief. To allow her back into the Premises—even conditionally—would reward misconduct and compromise both public safety and lawful leasehold rights.

16. For the reasons stated above, I respectfully request that the Court: (1) strike or clarify any provision in the proposed order that could be interpreted to allow Maureen Lupo, her agents, or affiliates to access or use the Premises in any way; (2) maintain the current Temporary Closing Order; and (3) defer all questions of tenancy and lawful use to the Supreme Court in *Reisner v. Lupo*, 650204/2025, which is actively adjudicating those rights.

17. Authorizing Ms. Lupo to access or use the Premises while the related matter remains pending would undermine the integrity of that proceeding. It would amount to premature judicial recognition of a tenancy claim she has failed to substantiate in that forum.

I affirm this 26th day of June, 2025, under the penalties of perjury under the laws of New York, which may include a fine or imprisonment, that the foregoing is true, and I understand that this document may be filed in an action or proceeding in a court of law.

Dated: New York, New York

June 27, 2025

By: /s/ Ian Reisner
Ian Reisner